

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 5944 of 2021

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

IN THE MATTER OF :

Alea Begum

.....Petitioner

-Versus-

Bangladesh, represented by the Secretary,
Ministry of Liberation War Affairs,
Bangladesh Secretariat, Ring Road, Police
Station-Shabagh, District- Dhaka and others

.....Respondents.

Dr. Zamirul Akhter, Advocate

.....for the petitioner

Mr. Md. Saiefuldin Khalid, DAG with

Ms. Fatema Rshid ,AAG

..for the Respondents

Heard and Judgment on: 21.08.2024

Present:

Ms. Justice Ashish Ranjan Das

&

Ms. Justice Fahmida Quader

Ashish Ranjan Das, J;

Rule Nisi was issued at the instance of the petitioner Alea Begum
in the following terms:

“Let a Rule Nisi be issued calling upon the respondents to show cause as to why they should not be directed to pay all outstanding state honorarium from the month of July 2015 till to date to the petitioner, who is the heir’s and wife of late Freedom Fighter Abu Abdullah Bhuiyan and publish the name of the petitioner’s husband Md. Abu Abdullah Bhuiyan as a Freedom Fighter in the official Gazette of the People’s Republic of Bangladesh and/or required by the law to do and/ or pass such other or further order or orders as to this Court may seem fit and proper.”

We have heard the learned lawyer for the petitioner and the reply given by the learned Deputy Attorney General.

Short fact is that Abu Abdullah Bhuiyan used to be a valiant Freedom Fighter. He died and his widow as the petitioner Alea Begum remains as his successor and entitled to get the allowances from the government, as the widow of a valiant Freedom Fighter. But all on a sudden, the respondent government represented by the Secretary, Ministry of Liberation War Affairs stopped paying allowances to widow of Abu Abdullah Bhuiyan, he left no stone unturned to get the redress but of no avail.

Finally, the heirs of Abu Abdullah Bhuiyan pressed an application on 01.03.2021 to the Ministry of the Government in order to get the allowances as the successors of valiant Freedom Fighter. But the

respondent no.1 government as yet gave no reply nor the heirs of deceased Freedom Fighter Abu Abdullah Bhuiyan got any allowance.

Thus, we see that the issue has been pending before the appropriate authority i.e. the Secretary of the Ministry of Liberation War Affairs over the years. Thus, we think it just as learned Deputy Attorney General also agreed, that a direction should be given upon the respondent No.1 to take decision on the application of the petitioner's (Annexure-F), page-59 within 30 days from date of receipt of a copy of this order.

Accordingly, this Rule is disposed of.

No order as to costs.

Communicate the judgment and order at once.

Fahmida Quader, J:

I agree.

Bashar, B.O.